

Smt. Soma Ghosh vs Jayanta Ghosh on 24 June, 2015

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mb In the High Court At Calcutta Civil Revisional Jurisdiction Appellate Side C.O. 2452 of 2014
Smt. Soma Ghosh

-Vs.-

Jayanta Ghosh Mr. Falguni Bandyopadhyayfor the petitioner Mr. Subrata Bhattacharyyafor the opposite party In this application under Section 24 of the Code of Civil Procedure, the petitioner/wife has prayed for transfer of the Matrimonial Suit No. 56 of 2014 filed by the opposite party/husband and pending before the learned Additional District Judge at Durgapur, Burdwan, which now stands transferred to the Fast Track Court at Durgapur, Burdwan and has been re-numbered as Matrimonial Suit No. 215 of 2014, to the Court of the learned District Judge at Alipore, South 24-Parganas.

It is the case of the petitioner that the opposite party/husband has motivatedly filed the said matrimonial suit before the Court at Durgapur when no cause of action of the matrimonial suit arose in the district of Burdwan. The petitioner has disclosed the certificate of marriage wherefrom it appears that the marriage between the petitioner and the opposite party was solemnised within the jurisdiction of the learned District Judge, North 24-Parganas. In the application it has been categorically stated that the petitioner has not ever stayed at 35/9, Secondary Road, P.S. Durgapur, District-Burdwan, which has been stated in the plaint filed in the matrimonial suit, to be the last place of solemnisation of the marriage between the petitioner/wife and the opposite party/husband. According to the petitioner, she has no independent source of income and she is not receiving any maintenance from the opposite party/husband. She is presently residing along with her minor daughter at her mother's residence at Garia.

Mr. Bandyopadhyay, appearing for the petitioner drew my attention to the marriage registration certificate disclosed in the application wherefrom it is evident that the marriage between the petitioner and the opposite party was solemnised under Sections 5 and 7 of the Hindu Marriage Act, 1955 on August 14, 2002 at Indrapuri, 179, Bidhan Pally, Police Station- Regent Park, Garia, Kolkata 700 084, whereas in paragraph 2 of the plaint filed in the matrimonial suit, the opposite party has stated that the marriage was solemnised at Durgapur. According to Mr. Bandyopadhyay, in view of the said marriage registration certificate proving beyond doubt that the marriage between the petitioner and the opposite party took place at Regent Park within the jurisdiction of the District Judge, Alipore, South 24-parganas, and that the statement made by the opposite party/husband in the plaint filed in the matrimonial suit that the marriage between the parties took place at Durgapur is ex facie untrue. Thus, according to him, no court in the District of Burdwan has jurisdiction to entertain the matrimonial suit filed by the opposite party/husband. He further submitted that the

petitioner/wife has a minor daughter and the opposite party/husband is not even paying the education expenses of the minor daughter. She cannot leave the minor daughter back at home, to travel to Durgapur to contest the said matrimonial suit.

On the basis of the aforesaid facts, the petitioner has stated that it is impossible for her to undertake the long distance between her present place of residence at Garia to Durgapur to contest the said matrimonial suit before the learned Additional District Judge at Durgapur, Burdwan.

Mr. Bhattacharyya, appearing for the opposite party/husband, strenuously opposed this application. According to him, from the averments made in this application it is ex facie evident that this application is liable to be rejected in limine and, as such, there is no necessity of any affidavit-in-opposition being filed by the opposite party/husband.

Accordingly, this application is taken up for hearing without any affidavit being filed by the opposite party. However, Mr. Bhattacharyya appearing for the opposite party/husband could not demonstrate the statement of the petitioner/wife that the Additional District Judge, Durgapur lacks the jurisdiction to entertain the said matrimonial suit is incorrect. He even could not demonstrate that the petitioner has any independent source of income and she is receiving any maintenance from the opposite party/husband. There is nothing on record to show that the opposite party will face any inconvenience if the said suit is transferred from the Fast Track Court at Durgapur to the Court of the learned District Judge at Alipore as prayed for by the petitioner. The only ground to oppose this application, which has been asserted by Mr. Bhattacharyya, is that the statement made in the plaint filed by the opposite party in the matrimonial suit that he has been threatened by the petitioner and her family members. However, in the facts of this case, I am unable to convince myself to accept the unfounded apprehension of the opposite party that he will face any threat from the petitioner if he is required to present in Alipore Court to contest the matrimonial suit..

After considering the facts and circumstances of this case and the submissions made both by Mr. Bandyopadhyay and Mr. Bhattacharyya, I am satisfied that the petitioner has made out a case for obtaining an order of transfer of the matrimonial proceedings presently re-numbered as Matrimonial Suit No. 215 of 2014 from the Fast Track Court at Durgapur, Burdwan to the Court of the learned District Judge, Alipore, South 24-Parganas.

Accordingly, the application, being C.O. 2452 of 2014, is allowed.

The learned District Judge, Burdwan is directed to forthwith transmit all the records of the Matrimonial Suit No. 215 of 2014 (Jayanta Ghosh vs. Soma Ghosh) pending before the Fast Track Court at Durgapur to the Court of the learned District Judge, Alipore, South 24-Parganas preferably within a period of four weeks from the date of communication of this order.

With the aforesaid directions, this application, being C.O. 2452 of 2014, is disposed of.

There will, however, be no order as to costs.

Urgent photostat website copis of this order, if applied for, be made available to the parties upon compliance of all necessary formalities.

(Ashis Kumar Chakraborty, J.)